

SENATE No. 1597

The Commonwealth of Massachusetts

PRESENTED BY:

Patrick M. O'Connor

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to a healthier, stronger Massachusetts.

PETITION OF:

NAME:

Patrick M. O'Connor

DISTRICT/ADDRESS:

First Plymouth and Norfolk

SENATE No. 1597

By Mr. O'Connor, a petition (accompanied by bill, Senate, No. 1597) of Patrick M. O'Connor for legislation relative to a healthier, stronger Massachusetts in the wake of the novel coronavirus pandemic. Public Health.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1447 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to a healthier, stronger Massachusetts.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. The department of public health shall design and implement a public
2 awareness campaign, subject to appropriation, to promote healthy and active lifestyles in the
3 wake of the novel coronavirus pandemic. The campaign shall promote subjects including, but not
4 limited to, safe and responsible approaches to exercise in gyms and indoor exercise facilities,
5 healthy habits to improve immune, respiratory, and other systems of the body to support virus
6 resistance, and safe practices to counteract the physical and emotional impacts of quarantine and
7 social distancing. Promotion methods shall include, but not be limited to, television and website
8 advertisements, infographic displays in public places, and the adoption of a memorable slogan.

9 SECTION 2. The department of public health shall establish and set up on the books of
10 the Commonwealth a gym membership subsidy program for the purpose of incentivizing public

11 and private employers to offer free gym memberships for employees. The department shall
12 design and implement an application system whereby employers may apply for partial or full
13 reimbursement for the costs of offering employees free gym memberships. The department
14 acting under such program shall prioritize applicants who do not contract with a health insurance
15 provider that offers gym membership reimbursements.

16 SECTION 3. Notwithstanding any general or special law to the contrary, there shall be
17 established a special commission to study and recommend a recovery framework for survivors of
18 the novel 2019 coronavirus incorporating epidemiological and preventative health science, best
19 practices in lifestyle and fitness, and healthcare industry insight.

20 (a) The commission shall be comprised of the following members: three private gym
21 owners, to be appointed by the Governor; the director of the Massachusetts Independent Fitness
22 Operators Organization; the commissioner of the department of public health, or their designee;
23 the director of Mass In Motion program, or their designee; the director of the bureau of
24 community health and prevention, or their designee; the director of the Massachusetts Health
25 Policy commission, or their designee; and the director of the Massachusetts Center for Health
26 Information and Analysis, or their designee.

27 (b) The first meeting of the commission shall take place no later than December 1, 2025
28 and shall be organized by the director of the bureau of community health and prevention.

29 (c) The commission shall produce a report of their findings and analysis along with any
30 recommendations for legislation to the Clerks of the House and Senate and the chairs of the Joint
31 Committee on Public Health no later than December 1, 2026.